

**GRANT AGREEMENT BETWEEN
WYOMING DEPARTMENT OF HEALTH, AGING DIVISION
AND
CITY OF CHEYENNE, OFFICE OF YOUTH ALTERNATIVES**

1. **Parties.** The parties to this Grant Agreement (Agreement) are Wyoming Department of Health, Aging Division (Agency), whose address is: 2300 Capitol Avenue, Hathaway Building 4th Floor, Cheyenne, Wyoming 82002, and City of Cheyenne, Office of Youth Alternatives (Grantee), whose address is: 1328 Talbot Ct. Cheyenne, WY 82001.
2. **Purpose of Agreement.** The purpose of this Agreement is to set forth the terms and conditions by which the Grantee shall provide services for the Foster Grandparent Program (FGP), a state funded programs supporting older adults in Wyoming. The FGP services provide stipends and benefits to as many senior volunteers over the age of fifty-five (55) as possible so they may continue to remain self-sufficient and independent in their community for as long as possible. The service areas for this program are Goshen, Laramie, and Platte.
3. **Term of Agreement.** This Agreement is effective when all parties have executed it (Effective Date). The term of the Agreement is from July 1, 2020 or the Effective Date, whichever is later, through August 30, 2021. All services shall be completed during this term. The period of performance for Grant activities is from July 1, 2020 or the Effective Date, whichever is later, through June 30, 2021. Grantee must utilize all funds associated with this Agreement during the period of performance.
4. **Payment.**
 - A. The Agency agrees to pay the Grantee for the services described in Section 5 below and in Attachments A and B, both of which are attached to and incorporated into this Agreement by this reference. Total payment under this Agreement shall not exceed twenty-eight thousand, two hundred seventy-two dollars (\$28,272.00). Each month the Grantee shall submit an invoice for services rendered in the prior month. Payment shall be made within forty-five (45) days after submission of invoice pursuant to Wyo. Stat. § 16-6-602. Grantee shall submit invoices in sufficient detail to ensure that payments may be made in conformance with this Agreement.
 - B. No payment shall be made for work performed before the Effective Date of this Agreement. Should the Grantee fail to perform in a manner consistent with the terms and conditions set forth in this Agreement, payment under this Agreement may be withheld until such time as the Grantee performs its duties and responsibilities to the satisfaction of Agency.
 - C. Except as otherwise provided in this Agreement, the Grantee shall pay all costs and expenses, including travel, incurred by Grantee or on its behalf in connection with

Grantee's performance and compliance with all of Grantee's obligations under this Agreement.

5. Responsibilities of Grantee. The Grantee agrees to:

- A. Provide the services described in Attachments A and B as approved by the Agency for the term of the Agreement.
- B. Provide services in compliance with (1) Corporation of National and Community Services Grant, which is incorporated into this Agreement by this reference; (2) federal and state statutes; and (3) state rules and regulations of the Agency.
- C. On a monthly basis, the Grantee shall expend all program income funds before expending any local match funds or state funds.
- D. All publications or promotional materials produced for public distribution with funds from this Agreement shall use the following disclaimer:

“This document was developed under Grant(s) from the Wyoming Department of Health, Aging Division, Community Living Section. These contents do not necessarily represent the policy of the Wyoming Department of Health, Aging Division and should not be considered an endorsement by the state government.”
- G. Maintain the time lapse of forty-five (45) days maximum between the transfer of the funds from the Agency and the Grantee's disbursement of those funds.
- H. Ensure proposed subgrantees, for the provision of services, are approved as part of any award of funds. The Grantee retains full and complete responsibility for the operation of the project in keeping with the above referenced rules and regulations. The Grantee shall ensure that all expenditures incurred by the subgrantee(s) shall be in accordance with the fiscal policies established by the Agency and the State of Wyoming, which are incorporated into this Agreement by this reference. Copies of all sub-agreements shall be kept on-site and available for monitoring by the Agency at any time. The Grantee shall ensure that the Agency will be able to conduct on-site review monitoring of subgrantee.
- I. Participate and assist in efforts undertaken by the Agency to evaluate the effectiveness, feasibility, and cost of the project. This includes any quality assurance or cost review conducted by the Agency.
- J. Resolve any adverse assessment or audit findings in accordance with Wyoming statutes; Agency's rules and regulations; Agency policies, which are incorporated into this Agreement by this reference.

- K. Prior to providing services, Grantee shall complete all release of information forms. Forms shall be kept on-site and available for review by the Agency. All protected health information collected and exchanged will be protected and maintained in compliance with Health Information Portability and Accountability Act (HIPAA).
- L. Have a formalized Grievance Procedure in place in order to allow the Grantee's recipients of services the opportunity to complain or grieve the denial of services which will be reviewed by the Grantee within ten (10) working days of the client's complaint or request for an appeal of a denial of services.
- M. Grantee shall also act in accordance with policies and procedures of the Agency's Foster Grandparents Program, which are incorporated into the Contract by this reference.

6. **Responsibilities of Agency.** The Agency agrees to:

- A. Pay Grantee in accordance with Section 4 above.
- B. Provide technical assistance and support to the Grantee.
- C. Conduct quality assurance and financial reviews, on a periodic basis, to evaluate the Grantee, by using criteria developed by the Agency. This may include, but is not limited to, on-site reviews and personal visits to clients.

7. **Special Provisions.**

- A. **Monitoring Activities.** Agency shall have the right to monitor all activities related to this Agreement that are performed by Grantee or its subgrantees. This shall include, the right to make on-site inspections at any time and with reasonable notice; to bring experts and consultants on-site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of Agreement related work.
- B. **No Finder's Fees.** No finder's fee, employment agency fee, or other such fee related to the procurement of this Agreement, shall be paid by either party.

8. **General Provisions.**

- A. **Amendments.** Any changes, modifications, revisions, or amendments to this Agreement which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed by all parties to this Agreement.

- B. Applicable Law, Rules of Construction, and Venue.** The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming, without regard to conflicts of law principles. The terms "hereof," "hereunder," "herein," and words of similar import, are intended to refer to this Agreement as a whole and not to any particular provision or part. The Courts of the State of Wyoming shall have jurisdiction over this Agreement and the parties. The venue shall be the First Judicial District, Laramie County, Wyoming.
- C. Assignment Prohibited and Agreement Shall Not be Used as Collateral.** Neither party shall assign or otherwise transfer any of the rights or delegate any of the duties set out in this Agreement without the prior written consent of the other party. The Grantee shall not use this Agreement, or any portion thereof, for collateral for any financial obligation without the prior written permission of the Agency.
- D. Audit and Access to Records.** The Agency and its representatives shall have access to any books, documents, papers, electronic data, and records of the Grantee which are pertinent to this Agreement. The Grantee shall immediately, upon receiving written instruction from the Agency, provide to any independent auditor or accountant all books, documents, papers, electronic data, and records of the Grantee which are pertinent to this Agreement. The Grantee shall cooperate fully with any such independent auditor or accountant during the entire course of any audit authorized by the Agency.
- E. Availability of Funds.** Each payment obligation of the Agency is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation and which may be limited for any reason including, but not limited to, congressional, legislative, gubernatorial, or administrative action. If funds are not allocated and available for continued performance of the Agreement, the Agreement may be terminated by the Agency at the end of the period for which the funds are available. The Agency shall notify the Grantee at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to the Agency in the event this provision is exercised, and the Agency shall not be obligated or liable for any future payments due or for any damages as a result of termination under this section.
- F. Award of Related Agreements.** The Agency may award supplemental or successor Agreements for work related to this Agreement or may award Agreements to other grantees for work related to this Agreement. The Grantee shall cooperate fully with other grantees and the Agency in all such cases.
- G. Certificate of Good Standing.** The Grantee shall provide to the Agency a Certificate of Good Standing from the Wyoming Secretary of State, or other proof that Grantee is authorized to conduct business in the State of Wyoming, if required, before performing work under this Agreement. Grantee shall ensure that all annual filings and corporate taxes due and owing to the Secretary of State's office are up-to-date before signing this Agreement.

- H. **Compliance with Laws.** The Grantee shall keep informed of and comply with all applicable federal, state, and local laws and regulations in the performance of this Agreement.
- I. **Confidentiality of Information.** Except when disclosure is required by the Wyoming Public Records Act or court order, all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the Grantee in the performance of this Agreement shall be kept confidential by the Grantee unless written permission is granted by the Agency for its release. If and when Grantee receives a request for information subject to this Agreement, Grantee shall notify Agency within ten (10) days of such request and shall not release such information to a third party unless directed to do so by Agency.
- J. **Entirety of Agreement.** This Agreement, consisting of nine (9) pages; Attachment A, Statement of Work, consisting of two (2) pages; and Attachment B, Grant Application, consisting of thirteen (13) pages, represent the entire and integrated Agreement between the parties and supersede all prior negotiations, representations, and agreements, whether written or oral. In the event of a conflict or inconsistency between the language of this Agreement and the language of any attachment or document incorporated by reference, the language of this Agreement shall control.
- K. **Ethics.** Grantee shall keep informed of and comply with the Wyoming Ethics and Disclosure Act (Wyo. Stat. § 9-13-101, *et seq.*) and any and all ethical standards governing Grantee's profession.
- L. **Extensions.** Nothing in this Agreement shall be interpreted or deemed to create an expectation that this Agreement will be extended beyond the term described herein.
- M. **Force Majeure.** Neither party shall be liable for failure to perform under this Agreement if such failure to perform arises out of causes beyond the control and without the fault or negligence of the nonperforming party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. This provision shall become effective only if the party failing to perform immediately notifies the other party of the extent and nature of the problem, limits delay in performance to that required by the event, and takes all reasonable steps to minimize delays.
- N. **Indemnification.** Each party to this Agreement shall assume the risk of any liability arising from its own conduct. Neither party agrees to insure, defend, or indemnify the other.

- O. Independent Contractor.** The Grantee shall function as an independent contractor for the purposes of this Agreement and shall not be considered an employee of the State of Wyoming for any purpose. Consistent with the express terms of this Agreement, the Grantee shall be free from control or direction over the details of the performance of services under this Agreement. The Grantee shall assume sole responsibility for any debts or liabilities that may be incurred by the Grantee in fulfilling the terms of this Agreement and shall be solely responsible for the payment of all federal, state, and local taxes which may accrue because of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Grantee or its agents or employees to act as an agent or representative for or on behalf of the State of Wyoming or the Agency or to incur any obligation of any kind on behalf of the State of Wyoming or the Agency. The Grantee agrees that no health or hospitalization benefits, workers' compensation, unemployment insurance or similar benefits available to State of Wyoming employees will inure to the benefit of the Grantee or the Grantee's agents or employees as a result of this Agreement.
- P. Nondiscrimination.** The Grantee shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans with Disabilities Act (ADA), 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto and shall not discriminate against any individual on the grounds of age, sex, color, race, religion, national origin, or disability in connection with the performance under this Agreement.
- Q. Notices.** All notices arising out of, or from, the provisions of this Agreement shall be in writing either by regular mail or delivery in person at the addresses provided under this Agreement.
- R. Notice of Sale or Transfer.** The Grantee shall provide the Agency with notice of any sale, transfer, merger, or consolidation of the assets of the Grantee. Such notice shall be provided in accordance with the notices provision of this Agreement and, when possible and lawful, in advance of the transaction. If the Agency determines that the sale, transfer, merger, or consolidation is not consistent with the continued satisfactory performance of the Grantee's obligations under this Agreement, then the Agency may, at its discretion, terminate or renegotiate the Agreement.
- S. Ownership and Return of Documents and Information.** Agency is the official custodian and owns all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the Grantee in the performance of this Agreement. Upon termination of services, for any reason, Grantee agrees to return all such original and derivative information and documents to the Agency in a useable format. In the case of electronic transmission, such transmission shall be secured. The return of information by any other means shall be by a parcel service that utilizes tracking numbers.

- T. Prior Approval.** This Agreement shall not be binding upon either party, no services shall be performed, and the Wyoming State Auditor shall not draw warrants for payment, until this Agreement has been fully executed, approved as to form by the Office of the Attorney General, filed with and approved by A&I Procurement, and approved by the Governor of the State of Wyoming, or his designee, if required by Wyo. Stat. § 9-2-1016(b)(iv).
- U. Insurance Requirements.** Contractor is protected by the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, et seq., and certifies that it is a member of the Wyoming Association of Risk Management (WARM) pool or the Local Government Liability Pool (LGLP), Wyo. Stat. § 1-42-201, et seq., and shall provide a letter verifying its participation in the WARM or LGLP to the Agency.
- V. Publicity.** Any publicity given to the projects, programs, or services provided herein, including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices in whatever form, prepared by or for the Grantee, shall identify the Agency as the sponsoring agency and shall not be released without prior written approval from the Agency.
- W. Severability.** Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of the Agreement shall continue in full force and effect, and the parties may renegotiate the terms affected by the severance.
- X. Sovereign Immunity and Limitations.** Pursuant to Wyo. Stat. § 1-39-104(a), the State of Wyoming and Agency expressly reserve sovereign immunity by entering into this Agreement and the Grantee expressly reserves governmental immunity. Each of them specifically retains all immunities and defenses available to them as sovereign or governmental entities pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable law. The parties acknowledge that the State of Wyoming has sovereign immunity and only the Wyoming Legislature has the power to waive sovereign immunity. Designations of venue, choice of law, enforcement actions, and similar provisions shall not be construed as a waiver of sovereign immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to immunity shall be construed in favor of immunity.
- Y. Taxes.** The Grantee shall pay all taxes and other such amounts required by federal, state, and local law, including, but not limited to, federal and social security taxes, workers' compensation, unemployment insurance, and sales taxes.
- Z. Termination of Agreement.** This Agreement may be terminated, without cause, by the Agency upon thirty (30) days written notice. This Agreement may be terminated by the Agency immediately for cause if the Grantee fails to perform in accordance with the terms of this Agreement.

- AA. Third-Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties, and obligations contained in this Agreement shall operate only between the parties to this Agreement and shall inure solely to the benefit of the parties to this Agreement. The provisions of this Agreement are intended only to assist the parties in determining and performing their obligations under this Agreement.
- BB. Time is of the Essence.** Time is of the essence in all provisions of this Agreement.
- CC. Titles Not Controlling.** Titles of sections and subsections are for reference only and shall not be used to construe the language in this Agreement.
- DD. Waiver.** The waiver of any breach of any term or condition in this Agreement shall not be deemed a waiver of any prior or subsequent breach. Failure to object to a breach shall not constitute a waiver.
- EE. Counterparts.** This Agreement may be executed in counterparts. Each counterpart, when executed and delivered, shall be deemed an original and all counterparts together shall constitute one and the same Agreement. Delivery by the Grantee of an originally signed counterpart of this Agreement by facsimile or PDF shall be followed up immediately by delivery of the originally signed counterpart to the Agency.

THE REMAINDER OF THIS PAGE WAS INTENTIONALLY LEFT BLANK.

9. **Signatures.** The parties to this Agreement, either personally or through their duly authorized representatives, have executed this Agreement on the dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this Agreement.

The Effective Date of this Agreement is the date of the signature last affixed to this page.

AGENCY:

Wyoming Department of Health, Aging Division

Michael A. Ceballos, Director

Date

Lisa M. Osvold, Senior Administrator
Aging Division

Date

GRANTEE:

City of Cheyenne, Office of Youth Alternatives

Approved as to
form only:

Date: 6/15/20

Employer Federal Taxpayer ID# _____
DUNS# _____

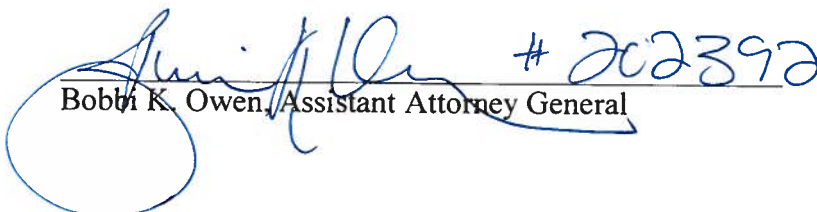
Director Signature

Date

Marian J. Orr, Mayor
Print Name and Title of Director

Date

ATTORNEY GENERAL'S OFFICE: APPROVAL AS TO FORM

 # 202392
Bobbi K. Owen, Assistant Attorney General

6-10-2020
Date

Attachment A

Statement of Work

General Description

This document is intended as a Statement of Work (SOW) to identify and describe important milestones and deliverables for the City of Cheyenne, Office of Youth Alternatives (Grantee) for the Foster Grandparent Program (FGP) grant agreement for State Fiscal Year 2021.

Foster Grandparent Program

The core mission of the Foster Grandparent Program is to provide stipends and benefits to as many senior volunteers over the age of fifty-five (55) as possible so they may continue to remain self-sufficient and independent in their community for as long as possible. The scope of the program is fostering self-sufficiency and independence in seniors over the age of fifty-five (55) by providing opportunities to engage in community volunteerism that directly benefits school-aged children, while receiving a stipend and other benefits.

There are five (5) goals in the grant application that the Grantee must strive to achieve within the one (1) year grant period (period of performance defined in Section 3 of the Agreement). All of these goals have methods of tracking the progress on a monthly basis. To be eligible for the program a client must be fifty-five (55) years of age or older and residing in Wyoming, and, through an ongoing evaluation, be financially eligible to participate in the program, (at least two hundred percent (200%) of poverty level or lower). The services provided for the service area clients have specific tracking mechanisms and projected service goals to achieve during the one year grant period.

This program serves Goshen, Laramie, and Platte counties.

Timeline and Deliverables

Foster Grandparent Program

The service deliverables include maintaining or increasing by up to two percent (2%) the number of unduplicated volunteers, volunteer hours, volunteer satisfaction and reducing the wait-list of volunteers, tracking the number of U. S. veterans who are recruited and enrolled as volunteers, maintaining or increasing by one percent (1%) the number of children who benefit from the program. The Foster Grandparent Program will strive to maintain the cost efficiency of providing stipends and benefits per volunteer per year by tracking program costs and funds. The provider will report all potential or suspected adult abuse, neglect or exploitation to the appropriate authorities.

Each month the Grantee shall submit an invoice, for services rendered in the prior month to the Community Living Section (CLS) Program Manager by the fifteenth (15th) day of the month. The Grantee shall submit the quarterly program and financial reports to the CLS Program Manager as outlined in the Timetable of Payments and Reporting Requirements chart in this Attachment A.

After the grant application has been approved by the Foster Grandparent Program Manager, any revision to any category (Personnel, Travel, Equipment, Consumable Supplies or Other) that exceeds 10% of the entire grant amount (i.e. Entire Grant Amount – \$30,000 x 10% = \$3,000), must be submitted in writing to the Foster Grandparent Program Manager. Revisions requests must be made by May 15, 2021. Once approved, the Grantee will submit the categories budget sheets to the Foster Grandparent Program Manager. The approved changes will become part of the approved grant application.

Timetable of Payments and Reporting Requirements for Foster Grandparent Program				
Task	Description – Grant Payment and Reporting Schedule	Service Dates	Due Date	Payment to Grantee
1	Grant payment made per Agreement. ^(a)	July 1 - July 31, 2020	August 15, 2020	Variable
2	Grant payment made per Agreement. ^(a)	August 1 - 31, 2020	September 15, 2020	Variable
3	Grant payment made and quarterly reports per Agreement. ^(a) and ^(b)	September 1 - 30, 2020	October 15, 2020	Variable
4	Grant payment made per Agreement. ^(a)	October 1 - 31, 2020	November 15, 2020	Variable
5	Grant payment made per Agreement. ^(a)	November 1 - 30, 2020	December 15, 2020	Variable
6	Grant payment made and quarterly reports per Agreement. ^(a) and ^(b)	December 1 - 31, 2020	January 15, 2021	Variable
7	Grant payment made per Agreement. ^(a)	January 1 - 31, 2021	February 15, 2021	Variable
8	Grant payment made per Agreement. ^(a)	February 1 - 28, 2021	March 15, 2021	Variable
9	Grant payment made and quarterly reports per Agreement. ^(a) and ^(b)	March 1 - 31, 2021	April 15, 2021	Variable
10	Grant payment made per Agreement. ^(a)	April 1 - 30, 2021	May 15, 2021	Variable
11	Grant payment made per Agreement. ^(a)	May 1 - 31, 2021	June 15, 2021	Variable
12	Grant payment made and quarterly reports per Agreement. ^(a) and ^(b)	June 1 - 30, 2021	July 15, 2021	Variable
13	Grantee submits final grant close out financials and client information for the grant year. All final payments or paybacks to be completed by this date.		August 15, 2021	Variable
NOT TO EXCEED TOTAL GRANT AWARD AMOUNT			\$28,272.00	

^(a) The Monthly Provider Invoice shall be due to the CLS Program Manager the month following service provision. The monthly invoice shall be submitted by the fifteenth (15th) day of each month.

^(b) Quarterly program and financial reports for the quarterly reporting period shall be submitted by the fifteenth (15th) day of the month to the CLS Program Manager.



Aging Division, Community Living Section
2300 Capitol Avenue, 4th Floor
Cheyenne, WY 82002
(307) 777-7995 • 1-800-400-2766
Fax (307) 777-5340 • wyaging@wyo.gov
www.health.wyo.gov



Michael A. Ceballos
Director

Mark Gordon
Governor

Community Living Section Memorandum

Date: June 11, 2020
To: Project Director
From: Jeff Clark, Manager, Community Living Section
Subject: **Contract and Statement of Work**

Enclosed you will find the SFY21 Foster Grandparent Program Contract and Statement of Work (SOW). The contract needs to be signed and dated in **BLUE INK** by the Director of your organization. **Legibly print** the name and title (Director) for the person signing the document. Please write in your **Federal taxpayer number and DUNS number** for your organization.

You may not change anything on any of the documents. If you have questions, please contact me and I in turn will work with our Attorney General (AG) to discuss any changes. If the contract is returned altered, the State of WY and the Wyoming Department of Health (WDH) will not accept the document. To get a new contract completed by the AG, it will delay the contract for approximately 4-6 weeks.

You may make copies of the contract, and the attachment (SOW) for your records, but please return all original documents with the signed contract.

Please return the signed documents in a timely manner, so that the contract signatures can be completed.

Once the contract is fully executed the Community Living Section will scan and email a copy to you.

If you have any questions or concerns, please contact me directly at 307-777-6103 or jeff.clark1@wyo.gov.

JC

Contract #: 202392

Entry Date: 4/28/2020 5:07:24 PM

Department: Wyoming Department of Health, Aging Division

WYOMING ATTORNEY
GENERAL'S OFFICE

Agency Contact: Clark, Jeff

Phone: 3077776103

2020 10 2020

Other Agency Contact: Sharon Simpson
777-7995

Bobbi K. Owen
APPROVED AS TO FORM

Client Comments:

Contractor/Vendor Name: City of Cheyenne, Office of Youth
Alternatives

Contract Title: SFY21 - Foster Grandparent -
Youth Alternatives

Contract Type: General Services - State
Funds

Contract Amount: 0

Contract Effective Date: 7/1/2020 12:00:00 AM

Contract Expiration Date: 6/30/2021 12:00:00 AM

Status: AG Approved as to Form

RETURN VIA: Ink Signature - Pick-up

Assigned Attorney: Bobbi Owen